

LEWELLEN v. CITY OF FAIRFIELD, ET AL.
Case No. CU25-12033

Demurrer

TENTATIVE RULING

The demurrer by Defendants City of Fairfield, Samantha Burrows, David Gassaway, and Catherine Moy to Plaintiff's complaint is SUSTAINED WITHOUT LEAVE TO AMEND.

The demurrer is not moot. Plaintiff did not timely file an amended complaint by the date for filing an opposition, did not obtain leave from the court to file an amended complaint, and did not obtain a stipulation from all parties to file an amended complaint after the date for filing an opposition to the demurrer. (Code Civ. Proc. § 472(a).) Three demurrers are pending: City of Fairfield's set for hearing on August 20, 2026, Community Action Partnership's set for hearing on September 3, 2026 and Solano Transportation Authority's set for hearing on September 3, 2026. Plaintiff filed an opposition to a demurrer but did not specify which demurrer. Following judicial review, a proposed amended complaint was rejected by the court at direction of Department 8 on the basis that it was untimely and an opposition had been filed.

Plaintiff's complaint is ambiguous and unintelligible. (Code Civ. Proc. § 430.10(f).) It uses the Judicial Council form for claims based on contract, but does not allege the formation or existence of any enforceable agreement between the parties. It employs common count cause of action forms, but does not truly plead any express or implied promises to pay money; instead, they seem to seek restitution of the value of misappropriated funds recovered by a state auditor as a result of Plaintiff's "whistleblowing" or the alleged value of Plaintiff's "Turnkey" idea. It distributes various conclusory allegations of wrongdoing, such as "fraud" and "land shaving" and "devaluation" of land, among various "attachments" interspersed through the complaint, without explaining what Plaintiff means by the use of those terms or how the conduct of the demurring defendants makes them liable to Plaintiff in a private civil cause of action.

Although uncertainty can usually be cured by amendment, Plaintiff has not met her burden of showing that it is reasonably possible for Plaintiff to allege a valid cause of action against the demurring defendants.

To the contrary, demurring defendants show that various claims and legal theories that Plaintiff may have been attempting to state in her complaint cannot be maintained. There is no civil cause of action for obstruction of justice. (*Agnew v. Parks* (1959) 172 Cal.App.2d 756, 766.) An essential element of whistleblower retaliation is the existence of an employment relationship at the time of the allegedly retaliatory action, but there is no allegation that Plaintiff was ever an employee of Defendant City of Fairfield. (*Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 287-288; *Bennett v. Rancho Cal. Water Dist.* (2019) 35 Cal.App.5th 908, 921.) Plaintiff appears unable to state a claim of

fraud because Defendant City of Fairfield is absolutely immune from liability from any misrepresentations made by its employees (Gov. Code § 818.8; *Masters v. San Bernardino County Employees Retirement Ass'n* (1995) 32 Cal.App.4th 30, 43) and Plaintiff did not allege the corruption or actual malice of any employee to have made any misrepresentation to overcome that employee's qualified immunity (Gov. Code § 822.2; *Masters*, 32 Cal.App.4th at 42). And, Plaintiff cannot sue Defendant City of Fairfield on an implied-in-law theory. (*Katsura v. City of Buenaventura* (2007) 155 Cal.App.4th 104, 109-110.)

While courts liberally grant leave to amend, it is improper to do so when a plaintiff cannot state a viable cause of action or show how she will amend the complaint to do so.

TANEKA BENNION and JAMES OAKLEY III v. CITY OF VALLEJO and COUNTY OF SOLANO

Case No. CU26-00059

VALLEJO's Demurrer

TENTATIVE RULING

Defendant CITY OF VALLEJO ("VALLEJO") demurs to the cause of action for violation of the Bane Act within Plaintiffs TANEKA BENNION and JAMES OAKLEY III's complaint. Plaintiffs allege that VALLEJO's public works personnel killed their father James Oakley II ("Decedent") by crushing him along with his belongings with a backhoe during a homeless encampment cleanup operation. Plaintiffs allege that VALLEJO's personnel observed a mattress covered with a tarp but rather than properly investigate the mattress and ensure no human being was present simply kicked it and made a short verbal inquiry before proceeding to utilize heavy machinery.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint must allege facts sufficient to establish every element of each cause of action. (*Rakestraw v. California Physicians' Service* (2000) 81 Cal.App.4th 39, 43.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Bane Act Civil Rights. Civil Code section 52.1 (the "Bane Act") permits civil actions against persons who intentionally interfere with the civil rights of others. A plaintiff